

(35)

Tentative Ruling

Re: **Brown v. The Arc Fresno/Madera Counties**
Superior Court Case No. 26CECG00287/COMPLEX

Hearing Date: September 1, 2026 (Dept. 403)

Motion: Motion to Compel Arbitration

Tentative Ruling:

To continue to Wednesday, September 9, 2026, 3:30 p.m. in Department 403.

Explanation:

On May 28, 2026, the parties filed a stipulation for order which was entered as an order by the court on June 15, 2026. The order acknowledged the parties' intent to pursue private arbitration and granted leave for plaintiff Mark Anthony Brown ("Plaintiff") to file a proposed First Amended Representative Action Complaint. Upon the filing of the amended pleading, and the filing of an answer thereto, all dates on calendar would be vacated, and the matter would be stayed.

Plaintiff has now filed an amended pleading. However, defendant The Arc Fresno/Madera Counties has yet to file an answer. Accordingly, these dates remain on calendar, and the action is not yet stayed. (June 15, 2026, Order, Item 6.) The matter is once again continued.

Pursuant to California Rules of Court, rule 3.1312(a), and Code of Civil Procedure section 1019.5, subdivision (a), no further written order is necessary. The minute order adopting this tentative ruling will serve as the order of the court and service by the clerk will constitute notice of the order.

Tentative Ruling

Issued By: SMC on August 31, 2026.
(Judge's initials) (Date)

(36)

Tentative Ruling

Re: ***Eastern Funding LLC v. Just Trans, Inc., et al.***
Superior Court Case No. 25CECG02867

Hearing Date: September 1, 2026 (Dept. 403)

Motion: by Plaintiff to Set Aside Dismissal of Action

Tentative Ruling:

To grant. The dismissal entered on May 7, 2026, is set aside on grounds of “mistake, inadvertence, surprise or excusable neglect.” (Code Civ. Proc., § 473, subd. (b).) A Case Management Conference hearing is set for Tuesday, December 1, 2026, at 3:30 p.m. in Department 403.

Explanation:

Attorney Affidavit of Fault:

The court is empowered to relieve a party “upon any terms as may be just ... from a judgment, dismissal, order, or other proceeding taken against him or her through his or her mistake, inadvertence, surprise, or excusable neglect.” (Code Civ. Proc. § 473, subd. (b).) Where a motion seeking this relief is based on an “attorney affidavit of fault,” the relief is mandatory. Otherwise, relief is discretionary. A limitation on the mandatory relief is that the court may deny relief if it finds the default or dismissal “was not in fact caused by the attorney’s mistake, inadvertence, surprise or neglect” (e.g. where the attorney is attempting to “cover up” for the client). (*Id.*)

Moreover, the law favors judgments on the merits. Where dismissals are the procedural equivalent on a default; i.e., those which deprive plaintiffs of their day in court, relief is favored. (*Leader v. Health Indus. Of America, Inc.* (2001) 89 Cal.App.4th 603, 618.)

Here, counsel submits that the dismissal of the action was caused by his firm. The court dismissed the action because plaintiff (or plaintiff’s counsel) failed to appear at the order to show cause (“OSC”) hearing on May 7, 2026. Mr. Alper indicates that he failed to appear at the OSC, because his legal assistant forgot to set up a remote appearance with the court for the hearing. (Alper Decl., ¶¶ 5, 7-8; Santamaria Decl., ¶¶ 5-6.) Upon realizing her mistake, Ms. Santamaria immediately made multiple attempts to contact the clerk of the court and CourtCall in order to arrange a telephonic or remote appearance, but was unsuccessful. (Santamaria Decl., ¶ 6.) Therefore, it is clear that plaintiff’s counsel’s firm’s inadvertence caused the dismissal of the action and the court intends to grant the motion.

Procedural Requirements:

The application "shall be accompanied by a copy of the answer or other pleading proposed to be filed therein, otherwise the application shall not be granted." (Code Civ. Proc. §473, subd. (b).) But this requirement is not jurisdictional, and substantial compliance may suffice. (*Carmel, Ltd. V. Tavoussi* (2009) 175 CA4th 393, 403 [substantial compliance found where counsel offered proposed answer at motion hearing rather than serving it with moving papers.]; *Austin v. Los Angeles Unified School Dist.* (2016) 244 CA4th 918, 933 [plaintiff substantially complied with the "attached-pleading requirement" by offering facts and legal arguments in her motion.].)

Given that, ordinarily, there is not a pleading to be filed by plaintiff at this stage of the proceedings; plaintiff is excused from this requirement. Nonetheless, the court appreciates plaintiff's attempt to comply with this requirement by attaching copies of the default packages against defendants. However, plaintiff will need to resubmit its default packages separately, if it seeks default judgment against defendants.

Pursuant to California Rules of Court, rule 3.1312(a), and Code of Civil Procedure section 1019.5, subdivision (a), no further written order is necessary. The minute order adopting this tentative ruling will serve as the order of the court and service by the clerk will constitute notice of the order.

Tentative Ruling

Issued By: SMC **on** August 31, 2026.
(Judge's initials) (Date)